

Line 7

Case Name: *Bryan Martin v. General Motors, LLC*

Case No.: 25CV461494

See ORDER above. (As this Motion was withdraw at the request of the moving party GM on August 28, 2026, this Motion is **OFF CALENDAR.**)

Line 8

Case Name: *Daniel Cahn v. Daric Holdings Incorporated, et al.*

Case No.: 25CV471178

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Nonparty Daric Technologies, Inc. moves under Code of Civil Procedure Section 1030 to require Plaintiff Daniel Cahn (“Plaintiff”) to post an undertaking in the amount of \$222,000, or such other amount as the Court deems appropriate, to secure Daric’s recoverable costs, arbitrator fees, and attorneys’ fees in this action, and staying this action until Plaintiff posts the required undertaking. Notice of Motion (the “Motion”) at 2:4-9 (filed: August 10, 2026). The Motion is made on the grounds that Plaintiff resides outside the State of California and Daric Technologies, Inc. has a reasonable possibility of obtaining judgment in this action. *Id.* at 2:10-12.

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties and the moving nonparty the full and fair opportunity to be heard, the Court finds and rules as follows.

Fact Allegations & Procedural Posture

Plaintiff Daniel Cahn, a Maryland and Florida resident with advanced degrees in engineering and business and over fifteen years of experience in technology leadership roles, alleges that Defendant Daric Holdings Incorporated recruited him from a \$300,000-per-year position at Amazon by representing that: (a) Daric Holdings Incorporated had a mature, revenue-generating relationship with SAP, (b) approximately 50–60 existing clients would be upsold Daric Holdings Incorporated’s product in the coming months, (c) Daric Holdings Incorporated projected \$25 million in revenue for both 2023 and 2024, and (d) the software would be priced at \$1 per account per month. Complaint at ¶¶ 11-15 (filed July 22, 2025).

Plaintiff further alleges that he entered into an Individual Contributor Agreement with Defendant Daric Holdings Incorporated in October 2023 Declaration of Gregory Ryan, worked full-time and exclusively for Daric Holdings Incorporated from December 2023 through June 2025, helped close a \$252,000 Peraton deal, *but* then received only \$5,200 in total compensation, discovered that critical representations about the SAP Pioneer contract, pricing, and client pipeline were false *id.*, and was terminated in July 2025 in retaliation for raising concerns about defendants’ conduct. Complaint at ¶¶ 22-26, 32, 53.